

26VECV00718 26VECV00718

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-11

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26VECV00718 Geshgian v. Homesite Insurance Co.

On July 30, 2026, Plaintiff filed an FAC, which largely responds to the arguments set forth in the demurrer to the original complaint. Ordinarily, the filing of the FAC would moot the demurrer to the original complaint.

In their reply brief, Defendants complain that the FAC was filed 1 day late. Per CCP 472 (a), an amended pleading may be filed before the deadline to file an opposition brief to a demurrer. Per CCP 1005 (b), an opposition brief is due 9 court days before the hearing. Together, these rules mean the FAC was due to be served and filed on July 29, 2026, i.e., 9 court days before August 11. Defendants concede that Plaintiff timely served the FAC on Defendants on July 29, 2026; due to a filing error, Plaintiff was unable to file the FAC in eCourt until July 30, 2026, 1 day late. (See Demurrer Reply, p. 2:5-11.) The Court, in its discretion, will allow the FAC to proceed, especially given that it responds to arguments set forth in the demurrer to the original complaint.

Accordingly, the demurrer is overruled as moot.